

FORM 70 S
DIVORCE JUDGMENT
Supreme Court of Prince Edward Island
(Family Section)



Court File No.:

Applicant/Petitioner:

Respondent:

THIS MOTION made by the petitioner for judgment for divorce was heard this day at _____. The respondent did not defend this action although properly served with the petition as appears from the affidavit of service filed.

ON READING the petition, the notice of motion for judgment, the affidavit dated _____ of the petitioner (where appropriate, add and the affidavit dated (date) of the respondent or as the case may be) filed in support of the motion and (refer to any other material filed, such as the Director of Child Protection's report dated _____, or the materials filed by the Office of the Children's Lawyer's dated _____) (where oral evidence is heard, add and on hearing the evidence presented by the petitioner).
(Judgment after a trial: adapt the recitals from Form 59 B)
(Judgment on joint petition)

THIS MOTION made jointly by the spouses for judgment for divorce was heard this day at _____. The spouses jointly petitioned for divorce.

ON READING the petition, the notice of motion for judgment, the affidavit dated _____ of Spouse One, and the affidavit dated _____ of Spouse Two filed in support of the motion and (refer to any other material filed, such as the Director of Child Protection's report dated _____ or the materials filed by the Office of the Children's Lawyer's dated _____), (where oral evidence was heard, add and on hearing the evidence presented by the spouses),

(Where the divorce is to take effect earlier than the thirty-first day after it is granted, add:) and since this court is of the opinion that by reason of special circumstances the divorce should take effect earlier than the thirty-first day after the day this judgment is granted, and since the spouses have agreed and undertaken that no appeal from the judgment will be taken,

1. THIS COURT ORDERS that _____, who were married at _____ on _____, are divorced and that the divorce takes effect on _____.

(Where the court also grants judgment for other relief, add:)

2. THIS COURT ORDERS, under the Divorce Act (or as may be), that

(In a judgment for the payment of money on which postjudgment interest is payable, add:)

THIS JUDGMENT BEARS INTEREST at the rate of _____ percent per year
commencing on _____.

(date)

(Signature of judge)

THE SPOUSES ARE NOT FREE TO REMARRY UNTIL THIS JUDGMENT TAKES EFFECT,
AT WHICH TIME A CERTIFICATE OF DIVORCE MAY BE OBTAINED FROM THIS
COURT. IF AN APPEAL IS TAKEN IT MAY DELAY THE DATE WHEN THIS JUDGMENT
TAKES EFFECT.